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NO. 86001-1-I

COURT OF APPEALS OF THE STATE OF WASHINGTON

DIVISION I

STATE OF WASHINGTON,

Respondent,

v.

JOSE HERNANDEZ-ESCOBAR,

Appellant.

APPEAL FROM KING COUNTY SUPERIOR COURT

THE HONORABLE JOE CAMPAGNA

BRIEF OF RESPONDENT

LEESA MANION (she/her)
King County Prosecuting Attorney

RAZ BARNEA
Deputy Prosecuting Attorney
Attorneys for Respondent

King County Prosecuting Attorney
W554 King County Courthouse
516 3rd Avenue
Seattle, Washington 98104
(206) 477-9497

TABLE OF CONTENTS

Page

A. ISSUES PRESENTED 1

B. STATEMENT OF THE CASE 2

1. PROCEDURAL FACTS 2

2. SUBSTANTIVE FACTS 3

a. Hernandez-Escobar Meets A.D.C.D. When She Is Preschool Age and Begins to Molest Her When She Is 8 Years Old 3

b. Hernandez-Escobar Rapes A.D.C.D. for the First Time When She Is 9 Years Old 4

c. Hernandez-Escobar Rapes A.D.C.D. for the Last Time When She Is Eleven Years Old; She Discloses the Abuse a Few Days Later 6

C. ARGUMENT 9

1. THE TRIAL COURT PROPERLY DETERMINED THAT JUROR EIGHT WAS ELIGIBLE TO SERVE 9

a. Relevant Facts 10

b. Hernandez-Escobar Waived This Issue by Failing to Object Below; He Cannot Show Manifest Constitutional Error 13

c. The Trial Court Did Not Abuse Its Discretion by Finding That Juror Eight Was a King County Resident and Qualified to Serve on the Jury 15

3. HERNANDEZ-ESCOBAR'S CONVICTIONS FOR FIRST-DEGREE CHILD MOLESTATION AND FIRST-DEGREE RAPE OF A CHILD DO NOT VIOLATE DOUBLE JEOPARDY 23

a. Relevant Facts 24

b. Based on the Entire Record, It Was Manifestly Apparent to the Jury That the Child Molestation Count Was Predicated on Acts Separate and Distinct from the Child Rape Counts 28

c. First-Degree Child Molestation and First-Degree Rape of a Child Are Not Identical Offenses and Multiple Punishments Are Authorized 37

4. THE TRIAL COURT WAS NOT OBLIGATED TO CONDUCT "*PETRICH*-BASED POLLING" AFTER THE JURY VERDICTS, A PROCEDURE HERNANDEZ-ESCOBAR APPEARS TO HAVE INVENTED 50

a. Relevant Facts 50

b. Due Process Did Not Require Additional "*Petrich*-Based Polling" 54

5. THE CHALLENGED COMMUNITY CUSTODY CONDITIONS SHOULD BE AFFIRMED 60

a. Relevant Facts 60

b. Standard Condition 8, Pertaining to Geographical Boundaries, Is Valid and Is Not Vague..... 61

c. Hernandez-Escobar's Challenge to the Condition Requiring Consent to DOC Searches Should Be Rejected as Not Ripe for Review..... 69

D. CONCLUSION..... 72

TABLE OF AUTHORITIES

Page

Table of Cases

Federal:

Grady v. Corbin, 495 U.S. 508,
110 S. Ct. 2084, 109 L. Ed. 2d 548 (1990)..... 48

United States v. Dixon, 509 U.S. 688,
113 S. Ct. 2849, 125 L. Ed. 2d 556 (1993)..... 47, 48, 49

Washington State:

Breckenridge v. Valley Gen. Hosp., 150 Wn.2d 197,
75 P.3d 944 (2003)..... 57

City of Bothell v. Barnhart, 156 Wn. App. 531,
234 P.3d 264 (2010)..... 15, 16, 17

City of Seattle v. Eze, 111 Wn.2d 22,
759 P.2d 366 (1988)..... 62

DeHeer v. Seattle Post-Intelligencer, 60 Wn.2d 122,
372 P.2d 193 (1962)..... 59

In re Pers. Restraint of Alaniz, 30 Wn. App. 2d 1024,
2024 WL 1209297 (2024) (unpublished) 65, 68

In re Pers. Restraint of Ansell, 1 Wn.3d 882,
533 P.3d 875 (2023)..... 68

In re Pers. Restraint of Bratcher, 30 Wn. App. 2d 1036,
2024 WL 1406540 (2024) (unpublished) 65, 68

In re Pers. Restraint of Delacruz, 20 Wn. App. 2d 1007,
2021 WL 5323921 (2021) (unpublished)..... 65, 67, 69

In re Pers. Restraint of Knight, 196 Wn.2d 330,
473 P.3d 663 (2020)..... 31, 35

In re Pers. Restraint of Reed, 136 Wn. App. 352,
149 P.3d 415 (2006)..... 47

In re Pers. Restraint of Rowe, 14 Wn. App. 2d 1012,
2020 WL 4596076 (2020) (unpublished)..... 66, 69

State v. Batson, 196 Wn.2d 670,
478 P.3d 75 (2020)..... 64

State v. Blake, 2019 WL276047, 7 Wn. App. 2d 1025 (2019)
(unpublished), *rev'd on other grounds*,
197 Wn.2d 170, 481 P.3d 521 (2021) 65, 66, 67, 69

State v. Borsheim, 140 Wn. App. 357,
165 P.3d 417 (2007)..... 29

State v. Brown, 55 Wn. App. 738,
780 P.2d 880 (1989)..... 55

State v. Brown, 78 Wn. App. 891,
899 P.2d 34 (1995)..... 43

State v. Calle, 125 Wn.2d 769,
888 P.2d 155 (1995)..... 29, 39, 40, 42

State v. Cates, 183 Wn.2d 531,
354 P.3d 832 (2015)..... 70, 71

State v. Coleman, 159 Wn.2d 509,
150 P.3d 1126 (2007)..... 54, 55

State v. Cornwell, 190 Wn.2d 296,
412 P.3d 1265 (2018)..... 69

State v. Crew, No. 83753-2-I (unpublished, July 24, 2023), 2023 WL 4703889 71

State v. Daniels, 183 Wn. App. 109, 332 P.3d 1143 (2014)..... 31, 35

State v. Finlayson, 69 Wn.2d 155, 417 P.2d 624 (1966)..... 14

State v. French, 157 Wn.2d 593, 141 P.3d 54 (2006)..... 41, 46

State v. Gocken, 127 Wn.2d 95, 896 P.2d 1267 (1995)..... 47, 48, 49

State v. Gurrola, 69 Wn. App. 152, 848 P.2d 199 (1993)..... 43

State v. Hai Minh Nguyen, 191 Wn.2d 671, 425 P.3d 847 (2018)..... 61, 62, 68, 69

State v. Hughes, 166 Wn.2d 675, 212 P.3d 558 (2009)..... 45, 46

State v. Johnson, 197 Wn.2d 740, 487 P.3d 893 (2021)..... 63, 65

State v. Jones, 71 Wn. App. 798, 863 P.2d 85 (1993)..... 40, 41, 42, 46

State v. Kelley, 168 Wn.2d 72, 226 P.3d 773 (2010)..... 40

State v. Kier, 164 Wn.2d 798, 194 P.3d 212 (2008)..... 47

State v. Kintz, 169 Wn.2d 537, 238 P.3d 470 (2010)..... 69

State v. Kitchen, 110 Wn.2d 403,
756 P.2d 105 (1988)..... 54, 55

State v. Lamar, 180 Wn.2d 576,
327 P.3d 46 (2014)..... 55, 56, 59

State v. Land, 172 Wn. App. 593,
295 P.3d 782 (2013)..... 30, 31, 35, 36, 38, 39, 41, 42, 44, 45, 47, 49

State v. Landrum, 199 Wn. App. 1037,
2017 WL 2645718 (2017) (unpublished)..... 66, 68, 69

State v. Linton, 156 Wn.2d 777,
132 P.3d 127 (2006)..... 57, 58

State v. Lorenz, 152 Wn.2d 22,
93 P.3d 133 (2004)..... 47

State v. Louis, 155 Wn.2d 563,
120 P.3d 936 (2005)..... 44, 49

State v. Marks, 90 Wn. App. 980,
955 P.2d 406 (1998)..... 57

State v. Murray, 190 Wn.2d 727,
416 P.3d 1225 (2018)..... 68

State v. Mutch, 171 Wn.2d 646,
254 P.3d 803 (2011)..... 28, 29, 30, 35, 36

State v. O'Hara, 167 Wn.2d 91,
217 P.3d 756 (2009)..... 14

State v. Ortega, 21 Wn. App. 2d 488,
506 P.3d 1287 (2022)..... 66

State v. Peña Fuentes, 179 Wn.2d 808,
318 P.3d 257 (2014)..... 30, 35, 36

State v. Peters, 10 Wn. App. 2d 574,
455 P.3d 141 (2019)..... 71

State v. Petrich, 101 Wn.2d 566,
683 P.2d 173 (1984)..... 1, 2, 24, 25, 27, 37, 50-55, 57-60

State v. Phillips, 65 Wash. 324,
118 P. 43 (1911)..... 17

State v. Pockert, 49 Wn. App. 859,
746 P.2d 839 (1987)..... 56

State v. Sanford, 15 Wn. App. 2d 748,
477 P.3d 72 (2020)..... 35, 36, 38, 39, 42, 49

State v. Smith, 165 Wn. App. 296,
266 P.3d 250 (2011), *aff'd on other grounds*,
177 Wn.2d 533, 303 P.3d 1047 (2013)..... 46

State v. Teninty, 17 Wn. App. 2d 957,
489 P.3d 679 (2021)..... 16

State v. Vander Houwen, 163 Wn.2d 25,
177 P.3d 93 (2008)..... 55

State v. Willis, 135 Wash. 312,
237 P. 711 (1925)..... 17

State v. Workman, 66 Wash. 292,
110 P. 751 (1911)..... 55

Other Jurisdictions:

Greenwald v. State, 579 So. 2d 38 (Ala. Crim. App. 1991) 18, 20

Nixon v. Rosenthal, 214 Ga. App. 446, 448 S.E.2d 45 (1994) 18

Constitutional Provisions

Federal:

U.S. CONST. amend. V 29, 39

Washington State:

CONST. art. I, § 7 69

CONST. art. I, § 9 ..... 29, 39

CONST. art. I, § 22 15

Statutes

Washington State:

RCW 2.36.070 ..... 15, 16

RCW 9.94A.631 70

RCW 9.94A.704 ..... 63, 64, 65, 67

RCW 9A.44.010 43

RCW 9A.44.079 46

RCW 9A.44.089 46

RCW 46.16A.140 ..... 21, 22

Rules and Regulations

Washington State:

CrR 6.16 ..... 52, 55

GR 14.1 65

RAP 2.5 ..... 13, 14, 28

Other Authorities

13 ROYCE A. FERGUSON, JR., WASHINGTON PRACTICE: CRIMINAL PRACTICE AND PROCEDURE § 4617 (2004) 58

A. ISSUES PRESENTED

1. Did the trial court properly conclude that a newly 18-year-old juror who was born in Renton, spent most of his life in Washington, and considered Washington his permanent residence, was eligible to serve on a King County jury despite recently living some of the time in Arizona?

2. Does Hernandez-Escobar's conviction for child molestation, in addition to his first-degree rape convictions, not violate double jeopardy, when the State made it manifestly apparent to the jury that the molestation count required a separate and distinct act and where the two crimes have different elements?

3. To ensure unanimity between different counts of the same crime, a prosecutor may "elect" to direct the jury to separate, specific acts for each count or the trial court may give a so-called *Petrich* instruction. For Hernandez-Escobar's three counts of first-degree rape, the prosecutor made elections for the first two counts and the trial court gave a *Petrich* instruction

for the third.[1] A *Petrich* instruction was also given for one count of first-degree child molestation. Has Hernandez-Escobar failed to show that he is entitled to a new trial because the trial court did not conduct post-verdict "*Petrich*-based polling" of the jury to ensure unanimity?

3. Is a community-custody condition requiring Hernandez-Escobar to obey geographic boundaries not unconstitutionally vague?

4. Is a community-custody condition requiring Hernandez-Escobar to consent to searches unripe for review because no one has sought to enforce it?

B. STATEMENT OF THE CASE

1. PROCEDURAL FACTS

A jury convicted Hernandez-Escobar of three counts of first-degree rape of a child and one count of first-degree child molestation. CP 482-85. The trial court imposed an

[1] *State v. Petrich*, 101 Wn.2d 566, 683 P.2d 173 (1984).

indeterminate sentence with a total standard-range minimum term of 280 months in prison. CP 541-42. The sentence imposed lifetime community custody, including all standard conditions and special conditions for sex offenses. CP 547-48.

Hernandez-Escobar timely appealed. CP 551.

2. SUBSTANTIVE FACTS

a. Hernandez-Escobar Meets A.D.C.D. When She Is Preschool Age and Begins to Molest Her When She Is 8 Years Old.

A.D.C.D was 3 or 4 years old when her mother met Jose Hernandez-Escobar. 6/5/23 RP 1045. At the time, A.D.C.D and her mother were living in a single rented room. 6/5/23 RP 1047-48. Only a few months after meeting Hernandez-Escobar, A.D.C.D's mother and Hernandez-Escobar became a couple. 5/22/23 RP 419-20. Hernandez-Escobar remained a fixture in A.D.C.D's life as the years went by. 5/22/23 RP 420; 6/5/23 RP 1053.

By the time A.D.C.D was 8, she and her mother shared a studio apartment, and Hernandez-Escobar would often visit in

the evenings but would not stay overnight. 6/5/23 RP 1049-50. Also when A.D.C.D was 8, Hernandez-Escobar began to molest her. At first, Hernandez-Escobar would squeeze her thigh or her chest when her mother was showering or otherwise occupied. 6/5/23 RP 1054. As time went by, though, Hernandez-Escobar's molestation escalated to instances in which "he would glide his hands up my legs to reaching the point where my vagina was—or is…he wouldn't insert his fingers but he would, I guess, do a rubbing motion or just gliding his fingers up and down," A.D.C.D. later recalled. 6/5/23 RP 1111-12. This abuse continued two or three times a week for the next year. 6/6/23 RP 1287.

b. Hernandez-Escobar Rapes A.D.C.D. for the First Time When She Is 9 Years Old.

A.D.C.D. began menstruating at the age of 9. 6/5/23 RP 1058. At an opportune moment when A.D.C.D.'s mother was not around, Hernandez-Escobar told A.D.C.D. that she "had just become a young lady and that he could make me feel more

like it." 6/5/23 RP 1058. He then put her on the bed she shared with her mother, put paper towels under her bottom, digitally raped her, performed oral sex on her, and then raped her with his penis. 6/5/23 RP 1059-60.

Similar rapes continued for years. Not long after the first rape in their studio apartment, A.D.C.D. and her mother moved to a one-bedroom apartment. 6/5/23 RP 1064-65. In this apartment, Hernandez-Escobar raped A.D.C.D. two or three times a week, often when A.D.C.D.'s mother was taking a long shower or had gone out to shop or run errands. 6/5/23 RP 1175-76; 6/6/23 RP 1262, 1264. After raping A.D.C.D., Hernandez-Escobar would force her to take a pill, either immediately or the next day. 6/5/23 RP 1104-07. A.D.C.D.'s description of these pills were consistent with a particular type of birth-control pill. 6/6/23 RP 1407-08.

c. Hernandez-Escobar Rapes A.D.C.D. for the Last Time When She Is Eleven Years Old; She Discloses the Abuse a Few Days Later.

On May 21, 2020, when A.D.C.D. was 11, Hernandez-Escobar took her to a storage unit in Burien. 5/22/23 RP 462-64; 6/5/23 RP 1067-68. On the way, Hernandez-Escobar stopped at a gas station and bought a beverage and box of condoms. 6/5/23 RP 1070; 6/7/23 RP 1446-48. Once at the storage unit, Hernandez-Escobar undressed A.D.C.D. and raped her. 6/5/23 RP 1072-75. On the way back to A.D.C.D.'s apartment, Hernandez-Escobar stopped at an auto-parts store to dispose of the used condom. 6/5/23 RP 1076-77.

Hernandez-Escobar had been exposing A.D.C.D. to online pornography since she was 10 years old, encouraging her to watch because it "will give you some ideas." 6/5/23 RP 1083. Eventually, A.D.C.D. learned to look up this content on her own and would watch it to "see if there was something I was actually supposed to understand." 6/5/23 RP 1083.

On the evening of May 25, 2020, coincidentally only a few days after the rape at the storage unit, A.D.C.D.'s mother checked A.D.C.D.'s phone to make sure there was no inappropriate content. 5/22/23 RP 465-68. She found a web-browser search history that included numerous pornography sites. 5/22/23 RP 468. A.D.C.D.'s mother confronted A.D.C.D. about the sites but A.D.C.D. did not have any answers, so her mother left the room. 5/22/23 RP 470. A.D.C.D. then told her adult sister about the rape and molestation, and the sister told their mother. 5/22/23 RP 470-73.

This disclosure occurred while Hernandez-Escobar had left the apartment briefly to take his son to the boy's mother. 5/22/23 RP 469. When Hernandez-Escobar returned from the errand, A.D.C.D.'s mother confronted him, but he denied that anything had happened. 5/23/23 RP 663-64. But he silently mouthed to A.D.C.D. to keep silent and said that she was lying and confused. 5/23/23 RP 650-52, 664; 6/5/23 RP 1088-93.

A.D.C.D.'s mother fainted. 6/5/23 RP 1093. Hernandez-Escobar left. 6/5/23 RP 1093

A.D.C.D.'s mother did not call police right away because she had to wait for a friend to help her translate to English. 5/24/23 RP 700-03. However, Hernandez-Escobar called the police and claimed he was being accused of something he did not do. 5/24/23 RP 759-66, 804-09.

After the girl's mother finally called the police, an investigator obtained video from the gas station where Hernandez-Escobar bought condoms on his way to raping A.D.C.D. at the storage unit, as well as footage and access logs from the storage unit itself, confirming A.D.C.D.'s allegation. 5/18/23 RP 282-86, 289-92, 296-303. Hernandez-Escobar voluntarily attended a police interview and was arrested at the end of it. 4/4/23 RP 175.

C. ARGUMENT

1. THE TRIAL COURT PROPERLY DETERMINED THAT JUROR EIGHT WAS ELIGIBLE TO SERVE.

Hernandez-Escobar first claims he is entitled to a new trial because one juror, Juror Eight, was ineligible to serve on a King County jury because he stated that his "primary residence" was in Arizona rather than in King County, Washington. This claim lacks merit because it does not consider the totality of the information that the trial court considered. Although Juror Eight, who had just turned 18, had an Arizona driver's license and had recently spent substantial time in Arizona, he was born in Washington, grew up in Washington, was residing in Washington at the time of his jury service, said he had no intention of making Arizona his permanent residence, and considered Washington home. The trial court properly seated Juror Eight because he was eligible and qualified to serve. Hernandez-Escobar's claim fails.

a. Relevant Facts.

On the morning of trial, May 15, 2023, the court received an email from Juror Eight, saying that he split his time between Washington and Arizona. 5/15/23 RP 1986-87. This juror wrote that his "primary residency" over the past year was in Wickenburg, Arizona, with his mother, but he lived with his father in Washington for about three months of that time. Appellant's Opening Brief (AOB) Appendix A. Juror Eight's questionnaire showed that he was 18 years old, was born in Renton, and listed his current residence as Kent, Washington. 5/15/23 RP 1989-90. Information provided to the court further showed that he possessed a Washington State identification card but held an Arizona driver's license and motorcycle endorsement. 5/15/23 RP 1989. Juror Eight was brought in for individual questioning. 5/15/23 RP 2014. During this questioning, Juror Eight told the trial court:

- His mother lived in Arizona, but his father lived in Kent.

- Over the previous four years, he split his time between Kent and Arizona—at first only "snowbirding" in Arizona but then spending about 60 percent of his time in Arizona.
- He had been residing in Washington continuously since April 3, 2023, and turned 18 on April 6, 2023, about a month before his jury service.
- He previously attended school in Arizona, but most recently had homeschooled for two years under the supervision of the Kent School District.
- He had recently obtained a General Equivalency Diploma (GED) from Green River College.
- He got a Washington ID so he could fly by himself. He got a driver's license in Arizona because he happened to be in Arizona at the time.
- He was not yet registered to vote but planned to register in Washington.
- If asked to identify which place he lived versus the place he visited, he would say that he lives in Kent.
- He planned to remain in Washington and did not plan to return to Arizona to reside permanently.

5/15/23 RP 2015-23.

The State argued that Juror Eight should be considered a resident of Washington based on his representations to the court. 5/15/23 RP 2023. The State asked if Hernandez-Escobar would waive future challenges to Juror 8's eligibility, but Hernandez-Escobar declined. 5/15/23 RP 2023. However, Hernandez-Escobar *did not object to Juror Eight remaining empaneled*. 5/15/23 RP 2023. Instead, he said, "We're not waiving future challenges, but *at this point I don't think I have a basis to seek his removal*." 5/15/23 RP 2023 (emphasis added). The court responded, "I don't think you do either." 5/15/23 RP 2023-24.

The court then ruled that Juror Eight was eligible to serve on the jury. 5/15/23 RP 2024. It noted that while residency "can be fluid," and Juror Eight had just turned 18 so he was too young to have established a "fully formed residence" as an adult, Juror Eight nonetheless was born in Washington, "lived the majority of his life in Washington" and had voiced no intent to live anywhere but Washington or to move out of state.

5/15/23 RP 2024. The trial court noted that Juror Eight did his most recent schooling and got his GED in King County, while his Arizona license was obtained as a matter of convenience "rather than coming back up to Washington to take a driver's test." 5/15/23 RP 2025. The trial court concluded, "I think it would be a very difficult thing for him to argue that his residence was Arizona based on his long contacts here, his intent to stay here, the fact that he graduated from high school here, both in terms of where he was registered as well as the actual college where he got his GED from." 5/15/23 RP 2025.

b. Hernandez-Escobar Waived This Issue by Failing to Object Below; He Cannot Show Manifest Constitutional Error.

This Court may refuse to review any claim of error which was not raised in the trial court unless the error is a "manifest error affecting a constitutional right." RAP 2.5(a). Specifically, failing to make a timely objection to the jury panel before trial begins waives any objection to the method of

selecting jurors. *State v. Finlayson*, 69 Wn.2d 155, 157, 417 P.2d 624 (1966).

After having a chance to question Juror Eight, Hernandez-Escobar expressly waived this issue and conceded that "at this point, I don't have a basis to seek his removal." 5/15/23 RP 2023. This court should decline to entertain this issue for the first time on appeal.

To meet RAP 2.5(a) and raise an error for the first time on appeal, an appellant must demonstrate (1) the error is manifest, and (2) the error is truly of constitutional dimension. *State v. O'Hara*, 167 Wn.2d 91, 98, 217 P.3d 756 (2009). Stated another way, the appellant must "identify a constitutional error and show how the alleged error actually affected the appellant]'s rights at trial." *Id.* at 926-27. Hernandez-Escobar cannot do so. For the reasons discussed next, he cannot show that Juror Eight was ineligible to serve on his jury. And he cannot show how Juror Eight's service on the jury actually affected his rights at trial. This issue should not be reviewed.

c. The Trial Court Did Not Abuse Its Discretion by Finding That Juror Eight Was a King County Resident and Qualified to Serve on the Jury.

Under RCW 2.36.070, jurors are presumed competent unless one of five enumerated factors render them incompetent for service: A juror must be at least 18 years old, a citizen of the United States, able to communicate in English, not have civil rights abridged by way of felony, and must be a resident of the county in which they were summoned. These requirements are consistent with the state constitutional requirement that a jury be "of the county" in which the offense is charged. Article I, § 22. Although juror eligibility is determined as a matter of law, *City of Bothell v. Barnhart*, 156 Wn. App. 531, 535, 234 P.3d 264 (2010), in this instance, the determination of the juror's residence resulted from the trial court's findings of fact —specifically facts into the juror's residential history, where he went to school, and where he himself considered his permanent home. The court's findings that Juror Eight was of King

County was a factual finding and should be reviewed for abuse of discretion. *See State v. Teninty*, 17 Wn. App. 2d 957, 964, 489 P.3d 679 (2021) (trial court did not err in striking juror for cause because it had a tenable basis for doing so and "trial court has the advantage of observing" the juror). However, under either standard of review, the facts as heard and determined by the trial court lead to the proper legal conclusion that Juror Eight was eligible because he met the conditions of RCW 2.36.070 and satisfied the constitution because he was "of King County."

To be clear, published precedent on juror qualifications is sparse, and precedent on what satisfies a juror residency sparser still. The State is unaware of any Washington case directly on point here. For example, in *Barnhart*, this Court found that a new trial was merited when the City of Bothell (which spans both King and Snohomish counties) empaneled a jury in municipal court comprising residents of both counties. 156 Wn. App. at 533. But the residency of those jurors was not in

question; the issue was whether residence in the municipality superseded the state requirement of county residency. 156 Wn. App. at 531. In *State v. Phillips*, the court upheld dismissal of a Canadian juror who had expressed an intention of becoming naturalized but who had not yet done so. 65 Wash. 324, 326, 118 P. 43 (1911). But there is no question about Juror Eight's United States citizenship here. In *State v. Willis*, a new trial was granted when a court empaneled a juror who was not a taxpayer—a requirement for jury service at the time. 135 Wash. 312, 312, 237 P. 711 (1925). That is not an issue here.

Of those cases, *Barnhart* comes closest to addressing the instant issue because it concerns residency as opposed to another qualification, but *Barnhart* still does not speak directly to the case at bar because the question in *Barnhart* was not whether the jurors resided in Washington or elsewhere but was instead whether in a municipal criminal trial, residence in the municipality superseded the requirement of residency in the county where the charge was brought. 156 Wn. App. at 531.

Out-of-state authority is similarly limited but support the conclusion that the trial court is in the best position to exercise its discretion in determining residency and thus eligibility. For example, in *Nixon v. Rosenthal*, a Georgia juror in Chatham County expressed in a colloquy that she was domiciled in Lowndes county, and the judge dismissed the juror on that basis even though some evidence suggested that she resided in Chatham county. 214 Ga. App. 446, 446, 448 S.E.2d 45 (1994). This dismissal was found to be within the judge's sound discretion despite the ultimate issue of residency not being clearly resolved. *Id.* at 446.

Greenwald v. State bears quite apt comparison to Hernandez-Escobar's case. 579 So. 2d 38, 41 (Ala. Crim. App. 1991). There, a juror in Marshall County, Alabama, was challenged as residing in Madison County, where she taught school and rented an apartment. *Id.* But the juror was born and raised in Marshall county, owned a residence in Marshall county, spent weekends, summers, and other vacations in

Marshall county, and considered herself a resident of Marshall county, maintaining her apartment and voter registration in Madison county only as a "matter of convenience." *Id.* The court further found that "her registration to vote in Madison county may not be proper, but that single fact is not controlling as to her residence." *Id.* The appellate court concluded the trial court had not abused its discretion. *Id.*

Similarly here, the trial court had ample reasons to find that Juror Eight was qualified. Juror Eight was born in King County, was raised in King County, divided his time between Arizona and King County and had only spent more than 50% of his time in Arizona over the past couple years. Juror Eight turned eighteen the month before this trial began and had been in Washington during the entirety of the period during which he was old enough to serve on a jury (indeed, his entire adult life, when he was free to choose for himself where to live). He had a summons delivered to a King County address, obviously received it there and appeared for service in King County, and

claimed no hardship for a multi-week trial to be held in King County. Furthermore, he stated that he intended to register to vote in Washington, considered Kent home, and had no plans to return to Arizona permanently.

Hernandez-Escobar's argument that Juror Eight was not a resident of King County fails because he focuses on the anomalous facts, not the preponderance of facts pointing toward King County residency. It cannot be said that the trial court abused its discretion when it determined that Juror Eight was a resident of King County based on all the evidence in support of that. The thrust of Hernandez-Escobar's argument is that Juror Eight had an Arizona driver's license and motorcycle license but only a Washington ID card and that if Juror Eight did intend to reside permanently in Washington, our driver's license laws required him to surrender his out-of-state driver's licenses and obtain Washington credentials.

As with the juror who was registered to vote out of county in *Greenwald*, the fact that Juror Eight's out-of-state

driver's license might be "improper" is not determinative of where his residence is for purpose of sitting on a jury. Juror Eight frankly admitted that he got his driver's license in Arizona as a matter of convenience. Neither the fact that he had an out-of-state driver's license nor his alleged failure to surrender it in exchange for a Washington driver's license suffice to defeat the abiding and durable ties to King County that qualified Juror Eight to serve. The tail does not wag the dog.

Besides, if Washington state driver's licensing laws are determinative, as Hernandez-Escobar wants them to be, they fully establish Juror Eight's residency. RCW 46.16A.140 defines a Washington resident simply as someone "who manifests an intent to live or be located in this state on more than a temporary or transient basis," as Juror Eight unequivocally did. The statute also establishes certain things as evidence of that intent, including becoming a registered voter in this state, as Juror Eight said he was going to do. RCW

46.16A.140(1)(a). And the same statute establishes that someone "may be a resident of this state even though that person has or claims residency or domicile in another state or intends to leave this state at some future time" if at least two conditions are met, including "[m]aintain[ing] a residence in this state for personal use" and the person "[h]as previously maintained a residence in this state for personal use and has not established a permanent residence outside the state of Washington." RCW 46.16A.140(2)(a),(d). Juror Eight said he had a home in King County and had not established a permanent residence in Arizona — certainly not as an adult. By law, he was a resident of Washington and King County.

Juror Eight was qualified to serve on a King County jury and Hernandez-Escobar's claims to the contrary are without merit.

3. HERNANDEZ-ESCOBAR'S CONVICTIONS FOR FIRST-DEGREE CHILD MOLESTATION AND FIRST-DEGREE RAPE OF A CHILD DO NOT VIOLATE DOUBLE JEOPARDY.

Hernandez-Escobar argues that his conviction for child molestation violates double jeopardy because facts elicited at trial could lead the jury to punish the same conduct. But the record plainly shows that it was manifestly apparent to the jury that the child-rape counts and the child-molestation count each represented separate and distinct acts during different incidents. Hernandez-Escobar claims a violation of double jeopardy because the jury was not instructed that it was required to find the acts constituting the count of child rape to be separate and distinct from the act constituting the child molestation count. This instruction was not necessary because child rape and child molestation are different in law and thus, with no legislative intent to the contrary, multiple punishments are authorized. Hernandez-Escobar's convictions should be affirmed.

a. Relevant Facts.

The charging period for each of the four counts was between January 1, 2017 and May 21, 2020. CP 84-85. Pretrial, Hernandez-Escobar asked that the State make elections prior to trial for all four counts or that *Petrich* instructions be given.[2] 4/3/24 RP 99. The State did not agree to elect before closing argument because doing so would be premature when the testimony had not unfolded at trial. 4/3/23 RP 101. But the State also agreed that *Petrich* instructions would be merited for any counts on which the State did not elect. 4/3/23 RP 101. The court eventually decided that either election or a *Petrich* instruction would be necessary given the scope of the charging period. 4/5/23 RP 380.

After the State rested, the State said that it intended to make elections in closing argument for counts one and two. 6/8/23 RP 1673. The State would specify count one to be the

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[2] *State v. Petrich*, 101 Wn.2d 566, 683 P.2d 173 (1984).

first time Hernandez-Escobar raped A.D.C.D. 6/8/23 RP 1673. Count two would be specified as the last time. 6/8/23 RP 1673. The State offered *Petrich* instructions for counts three (first-degree child rape) and four (first-degree child molestation). 6/8/23 RP 1673. CP 466-75.

During closing argument, the State distinguished between the elected counts for rape of a child and the count for rape of a child subject to *Petrich*. 6/20/23 RP 1798-1806. The State also distinguished between the conduct underlying the first-degree rape of a child charges and the sole child molestation charge. 6/20/23 RP 1793-97. Directing the jury towards Instruction 21 (the "to-convict" instruction on count four), the State noted the elements included "sexual contact for the purpose of gratifying sexual desires" and directed the jury towards the definition of "sexual contact" found in Instruction 16. 6/20/23 RP 1796. The State then recounted testimony describing this conduct—namely A.D.C.D.'s description of Hernandez-Escobar

squeezing her breasts, rubbing her vagina with his hands, and sucking and biting on her breasts. 6/20/23 RP 1796.

The State then distinguished this conduct from conduct constituting any of the first-degree rape of a child counts alleged in counts 1-3. The State referred the jury to Instruction 9 defining sexual intercourse specifically as penetrative sex and then recounted A.D.C.D.'s testimony further. 6/20/23 RP 1798-1800. For count one, the State asked the jury to recall how A.D.C.D. described "the very first time that the defendant forced his penis inside of her." 6/20/23 RP 1799-1801. For count two, the State directed the jury towards "a separate and distinct incident—the rape at the storage unit." 6/20/23 RP 1801-04. For count three, the State asked the jury to consider the testimony from A.D.C.D. that "Jose had raped her many other times… And all of those other rapes, they include every time he stuck his fingers inside of her" or the other rapes that occurred "on her mother's bed" or "standing up against the wall." 6/20/23 RP 1804-06.

The jury instructions reflected the State's hybrid approach of electing on counts one and two and offering *Petrich* instructions on counts three and four. For example, "to-convict" jury instructions for counts 1-3 each included language that these counts are separate and distinct from each other. CP 472-74. Jury instructions for counts one and two instructed that the State relied upon evidence of a single act constituting the count and the jury must unanimously agree this single act was proved. CP 467-68. After the State made its elections on counts one and two, jury instructions for count three also included a *Petrich* instruction requiring the jury unanimously agree that one particular act of rape of a child had been proven beyond a reasonable doubt but not requiring the jury to agree that all acts alleged were committed. CP 468. The court also gave a *Petrich* instruction for count four, requiring unanimous agreement that one count of child molestation had occurred but not requiring the jury to agree that all acts alleged were committed. CP 471.

During his own closing argument, Hernandez-Escobar discussed the evidence and the counts consistent with the State's elections. *See*, *e.g.*, 6/20/23 RP 1843-51, 1856. At no point did either party suggest that the jury rely on conduct constituting the crime of rape of a child to find Hernandez-Escobar guilty of the crime of child molestation.

b. Based on the Entire Record, It Was Manifestly Apparent to the Jury That the Child Molestation Count Was Predicated on Acts Separate and Distinct from the Child Rape Counts.

Hernandez-Escobar did not specifically raise a double-jeopardy objection below. 6/20/23 RP 1751-62. However, a double-jeopardy claim may be addressed for the first time on appeal.[3] *State v. Mutch*, 171 Wn.2d 646, 661-62, 254 P.3d 803

[3] Based on *Mutch*, this Court could decide to address the issue on appeal despite Hernandez-Escobar's failure to raise the issue below, or it could conclude that, because Hernandez-Escobar fails to establish a double jeopardy violation, there was no manifest constitutional error and thus review is inappropriate under RAP 2.5.

(2011). This Court reviews double-jeopardy claims *de novo*. *Id.* at 662.

The constitutional guaranty against double jeopardy protects a defendant against multiple punishments for offenses that are identical in both law and fact. U.S. CONST. amend. V; WASH. CONST. art. I, § 9; *State v. Calle*, 125 Wn.2d 769, 776, 888 P.2d 155 (1995). In sexual-abuse cases where the State charges more than one identical crime within the same charging period, e.g., two counts of first-degree child rape, the jury should be instructed that a conviction on each count must arise from a separate and distinct act. *State v. Borsheim*, 140 Wn. App. 357, 165 P.3d 417 (2007). Otherwise, the defendant is potentially exposed to multiple punishments for a single offense. *Mutch*, 171 Wn.2d at 663. "However, flawed jury instructions that permit a jury to convict a defendant of multiple counts based on a single act do not necessarily mean that the defendant received multiple punishments for the same offense; it simply means that the defendant *potentially* received multiple

punishments for the same offense." *Id.* at 663 (emphasis in original).

In order to determine whether such instructions "actually effected a double jeopardy error," a reviewing court conducts a rigorous review of "the entire trial record," including the evidence presented and the arguments of counsel. *Id.* at 664; *State v. Peña Fuentes*, 179 Wn.2d 808, 824, 318 P.3d 257 (2014). If "it was manifestly apparent to the jury that the State was not seeking to impose multiple punishments for the same offense and that each count was based on a separate act," no double jeopardy error has occurred. *Mutch*, 171 Wn.2d at 664 (cleaned up); *Peña Fuentes*, 179 Wn.2d at 824; *State v. Land*, 172 Wn. App. 593, 602, 295 P.3d 782 (2013).

This standard is satisfied where the prosecutor's closing argument clearly identifies the separate and distinct conduct on which each count is based, particularly where the defendant's strategy is to attack the victim's credibility rather than the particular number of incidents. *Peña Fuentes*, 179 Wn.2d at

825; *accord In re Pers. Restraint of Knight*, 196 Wn.2d 330, 341, 473 P.3d 663 (2020) (no double jeopardy violation where "the State clearly laid out to the jury which actions applied to which . . . charges"); *Land*, 172 Wn. App. at 602 (no double-jeopardy where the jury instructions, information, and State's closing argument made it clear that molestation and rape charges based on different conduct); *State v. Daniels*, 183 Wn. App. 109, 118-20, 332 P.3d 1143 (2014) (no double jeopardy violation where State made clear it was basing each count on a different location and time period).

Though the trial court here did not provide a "separate and distinct act" instruction, when considering the entire record, it was manifestly apparent to the jury that the State was not seeking to impose multiple punishments for the same offense and that the counts were based on separate acts. There was no double jeopardy violation.

While it is true that the jury instructions standing alone could have permitted the jury to convict Hernandez-Escobar of

first-degree child-molestation based on acts of child rape constituting the other counts, the record as a whole precludes this possibility. The State provided a roadmap for the jury at closing argument, stating that Hernandez-Escobar faced "four crimes, four separate counts" and then previewed that it would summarize evidence supporting the charges, one count at a time. 6/20/23 RP 1793. The State then followed this roadmap precisely by clearly identifying for the jury the separate and distinct conduct on which each count was based, following the chronology of the case by first recounting testimony of non-penetrative sexual contact supporting the allegation of count four child molestation, then signaling that child rape counts 1-3 had different elements supported by different facts, and only then summarizing testimony describing penile, digital, and oral penetration supporting counts 1-3. 6/20/23 RP 1793-1806.

As the record clearly reflects, the State informed the jury in closing that "each count of rape of a child in the first degree is based on an occasion that is separate and distinct from the

other counts of rape of a child in the first degree." 6/20/23 RP 1798. The State also made clear that count four, first-degree child molestation, was based on different conduct occurring at different times than the crimes alleged in counts one through three. In closing argument, the State said that Hernandez-Escobar "is charged with four crimes, four separate counts" and said it would then "spend some time going over each of those counts, talking about the evidence that forms the basis for each count." The State then summarized the trial testimony alleging the essential elements for child molestation before clearly transitioning to summarizing the testimony alleging the essential elements of first-degree rape of a child. 6/20/23 RP 1793-1806.

The State's closing clearly delineated between the crimes. For example, when discussing child-molestation, the State described Hernandez-Escobar rubbing A.D.C.D.'s chest, biting her breasts, rubbing her legs, and putting his hands on her vagina. 6/20/23 RP 1794-96. The State ended that summary by

arguing that that particular conduct was done for the purposes of sexual gratification, "especially in light of how the defendant's abuse progressed over time." 6/20/23 RP 1797. The closing argument recounting the evidence of rape alleged in counts one through three was presented as distinct and separate, involving penetration and not the same conduct as alleged in count four. 6/20/23 RP 1797-1806. The State's closing arguments, addressing different crimes sequentially and clearly tying distinct testimony to distinct crimes made clear, distinct elections and alleviated any risk of double jeopardy.

The structure of closing argument made it manifestly apparent—indeed, made it crystal clear—to the jury that the State was asking it to find Hernandez-Escobar guilty on count four based only on conduct separate and distinct from the conduct at issue in counts one, two and three. Therefore, no double jeopardy error occurred.

The State's comments in this case were just as clear or clearer than the comments that were found sufficient to avoid a

double jeopardy error in *Mutch*, *Peña Fuentes*, *Knight*, *Land*, and *Daniels*. And like the defendants in those cases, Hernandez-Escobar's strategy was not to challenge the number of incidents or A.D.C.D's memory of when and where they occurred, but to challenge her credibility generally and argue that she had fabricated the entire pattern of abuse either to escape getting in trouble for internet porn searches, or as part of an immigration visa scheme orchestrated by A.D.C.D.'s mother. 12/20/23 RP 1834-63.

Moreover, Hernandez-Escobar himself referred to which conduct was the basis for rape versus child molestation when discussing A.D.C.D's testimony, removing any possible doubt in the jury's mind about which conduct they should consider when evaluating whether the State had proved each charge beyond a reasonable doubt. 6/20/23 RP 1843-51, 1856-57.

Hernandez-Escobar relies on *State v. Sanford*, even going so far as to say that it presented a "similar scenario" to the case at bar. 15 Wn. App. 2d 748, 753, 477 P.3d 72 (2020); AOB at

30. This reliance is misplaced because in *Sanford* "the only evidence presented at trial of both child rape and child molestation was that Sanford engaged in oral-genital contact involving both his penis and OS's vagina. There was no evidence of vaginal penetration." *Id.* at 754. The *Sanford* court then summarized the "manifestly apparent" test as applied in *Mutch*, *Land*, and *Peña Fuentes* and distinguished these cases by noting that in *Mutch* the five acts of rape were clearly delimited at trial even without a "separate and distinct" instruction; and that the prosecutor's arguments in both *Land* and *Peña Fuentes* distinguished the conduct involving penetration underlying rape charges and other sexual contact underlying molestation charges. *Sanford*, 15 Wn. App. 2d at 755. Hernandez-Escobar's analogizing to *Sanford* ignores the fact that evidence from his trial included exhaustive descriptions of vaginal penetration *and* non-penetrative sexual contact and that the State distinguished this conduct during

closing argument, mapping out for the jury *exactly* which facts supported which charge.

Because it was manifestly apparent to the jury that the State did not intend to punish Hernandez-Escobar twice for the same conduct, and that the conduct underlying the one count of child molestation was different than the conduct underlying the three counts of child rape, this court should affirm the convictions on all counts.

c. First-Degree Child Molestation and First-Degree Rape of a Child Are Not Identical Offenses and Multiple Punishments Are Authorized.

As described above, the State's linear and structured closing argument made it manifestly apparent to the jury that the child-rape count and child-molestation count for which *Petrich* instructions were given are not based on the same conduct and, therefore, even in the absence of "separate and distinct" language in the instructions for these two counts, there is no double jeopardy. The State described why any double

jeopardy issue was cured by the clarity of the State's closing argument. Even so, there could be no double-jeopardy violation because child rape and child molestation are different offenses requiring different evidence and elements, and the State does not concede that "separate and distinct" language was needed.

In *Land*, 172 Wn. App. 593, this court held that a "separate and distinct" instruction was needed in a case alleging both child rape and child molestation. Without citing *Land*, Hernandez-Escobar relies on this premise by appealing to *Sanford*, which relied on *Land*. 15 Wn. App. 2d 748. As described above, *Sanford* concerned a case where the *only* evidence of rape was oral-genital contact. Likewise in *Land*, the only evidence of rape was digital—not penile—penetration. Said differently, in both *Land* and *Sanford*, the bare facts and limited evidence posed a question over whether the proper crime was rape or molestation—or both. The facts here do not present the same problem because the testimony recited

presents clear evidence of conduct that can only be charged as child molestation (non-penetrative and non-oral sexual contact for purposes of sexual gratification) *and* clear evidence of conduct that can only be charged as rape (penile and digital intercourse), and acts clearly separated in time. The concerns over ambiguity that underpin both *Sanford* and *Land* simply do not apply here.

However, to the extent that Hernandez-Escobar maintains that "separate and distinct" instructions are required in cases clearly alleging both child molestation and child rape, Hernandez-Escobar is wrong because these crimes require separate evidence, thus multiple punishments are authorized in the absence of clear legislative intent to the contrary. As discussed in the previous section, the constitutional guaranty against double jeopardy protects a defendant against multiple punishments for offenses that are identical in both law and fact. U.S. CONST. amend. V; WASH. CONST. art. I, § 9; *Calle*, 125 Wn.2d at 776. Double jeopardy is implicated only when the

court exceeds its legislative authority by imposing multiple punishments where multiple punishments are not authorized. *Calle*, 125 Wn.2d at 776. The question of whether multiple punishments are authorized is ultimately a question of the legislature's intent. *State v. Kelley*, 168 Wn.2d 72, 77, 226 P.3d 773 (2010).

The "same evidence" test determines whether multiple punishments are authorized for the same act. *Id.* at 777-78. If each offense contains an element not included in the other, then the offenses are not the same in law under this test. *Id.* at 777.

Applying this test, this Court has held that convictions for first-degree child rape and first-degree child molestation, even if based upon the same act, are not the same in law and do not violate double jeopardy. *State v. Jones*, 71 Wn. App. 798, 824-26, 863 P.2d 85 (1993). The court explained:

> Child molestation requires that the offender act for the purpose of sexual gratification, an element not included in first degree rape of a child, and first degree rape of a child requires that penetration or oral/genital contact occur, an element not required

> in child molestation. Each offense requires the State to prove an element that the other does not, and therefore the offenses are not the "same offense" for double jeopardy purposes.

Id. at 825 (footnotes omitted).

The Washington Supreme Court later affirmed the reasoning of *Jones* when, after examining the elements of first-degree child rape and first-degree child molestation, the court concluded that they were not the same in law, and that convictions for both crimes thus did not violate double jeopardy. *State v. French*, 157 Wn.2d 593, 610, 141 P.3d 54 (2006).

Notwithstanding established precedent, in *Land*, 172 Wn. App. 593, this Court applied the requirement of a "separate and distinct acts" instruction to different crimes. Despite the holdings of *Jones* and *French* that child molestation and child rape are not the same in law because each includes an element not required to establish the other, *Land* considered the defendant's charged conduct as it related to the definitions of

"sexual contact" and "sexual intercourse" provided to the jury. The court stated:

> where the *only evidence* of sexual intercourse supporting a count of child rape is evidence of sexual contact involving one person's sex organs and the mouth or anus of the other person, that single act of sexual intercourse, if done for sexual gratification, is both the offense of molestation and the offense of rape.

Land, 172 Wn. App. at 600 (emphasis added). This reasoning was then adopted by *Sanford*—a case Hernandez-Escobar mistakenly relies on to allege a double-jeopardy violation.

The "same evidence" test does not ask whether it is possible for a single act to constitute both crimes in any individual scenario. Again, if the crimes have different elements, then multiple punishments are authorized in the absence of any contrary legislative intent. *Calle*, 125 Wn.2d at 780. Comparing the elements, child rape requires sexual intercourse, and child molestation requires sexual contact. *Jones*, 71 Wn. App. at 825.

Although sexual intercourse can be accomplished by oral/genital sexual contact, the definition of sexual contact that applies to child molestation does *not* apply to sexual intercourse: "[S]exual contact, as used in RCW 9A.44.010(2) defines non-intercourse sexual contact for the crimes of child molestation and indecent liberties . . . and does not further define or limit the definition of sexual intercourse [applicable to child rape]." *State v. Gurrola*, 69 Wn. App. 152, 157, 848 P.2d 199 (1993). *Gurrola* reasoned that to apply the statutory definition of "sexual contact" to child rape cases would eliminate any distinction between rape of a child and molestation of a child when the contact was oral/genital, and concluded that was not the legislature's intent. *Id.*

Similarly, this Court in *State v. Brown*, 78 Wn. App. 891, 895-96, 899 P.2d 34 (1995), found no error when the trial court failed to provide the jury with the statutory "sexual contact" definition in a second-degree rape trial. Due to the improbability of inadvertent oral/genital contact, *Brown*

concluded that the legislature did not intend the statutory definition of "sexual contact" (i.e., the requirement of sexual gratification) to apply to rape cases:

> Plainly, the Legislature has set oral-genital contact as a special type of touching and included it in the definition of "sexual intercourse" for a reason. We hold … that it is because this type of touching does not involve inadvertent touching.

78 Wn. App. at 895-96.

The *Land* court's concern was that a jury may read the instructions in a way that permits it to base multiple convictions upon the same act. But this is a separate question from whether multiple punishments are legally authorized by the legislature in the first instance. As noted above, the correct inquiry to determine legislative intent is the same evidence test. *State v. Louis*, 155 Wn.2d 563, 569, 120 P.3d 936 (2005). Because child molestation and child rape include different elements (sexual contact/gratification vs. sexual intercourse), the crimes are not the same in law. *Land* ignored this well-established

framework, and instead incorrectly concluded that the crimes were substantively the same in a single factual scenario.

Moreover, *Land* did not discuss any legislative history of the child rape and child molestation statutes, or whether the legislature might have intended to provide a single punishment for violating both statutes. *Land* purported to rely on *State v. Hughes*, 166 Wn.2d 675, 684-86, 212 P.3d 558 (2009), which addressed a different crime altogether. But unlike *Land*, the supreme court in *Hughes* considered legislative history, statutory construction and purpose, and other sources, and reasoned that *second-degree rape* based on incapacity to consent and *second-degree child rape* both establish strict liability based on the victim's inability to consent due to status (age versus mental/physical incapacity). 166 Wn.2d at 684-85. By comparison, *Land* contains no analysis of legislative intent with respect to child rape and child molestation. When considering whether contrary legislative intent exists to override the results of the same evidence test, the only

similarity to *Hughes* here is that the child rape and child molestation statutes are contained in different subsections of the same portion of the criminal code. *See* RCW 9A.44.089; RCW 9A.44.079. But "[t]he codification of two crimes in the same chapter in and of itself does not demonstrate a clear legislative intent to treat the two crimes as the same offense for double jeopardy purposes." *State v. Smith*, 165 Wn. App. 296, 323-24, 266 P.3d 250 (2011), *aff'd on other grounds*, 177 Wn.2d 533, 303 P.3d 1047 (2013).

Indeed, child rape punishes different conduct than child molestation. Child rape punishes sexual intercourse, which includes oral/genital contact, while child molestation punishes all other forms of sexual contact. Child rape requires no mental state, while child molestation requires that the defendant act with the specific purpose of his or her sexual gratification. And in both *Jones* and *French*, *supra*, the appellate courts have recognized a legislative intent to authorize multiple punishments for child rape and child molestation. *See also*

State v. Lorenz, 152 Wn.2d 22, 34, 93 P.3d 133 (2004) (differentiating between sexual contact and sexual intercourse by holding that child molestation is not a lesser included offense of child rape). The Legislature is deemed to acquiesce in the court's interpretation of a statute if no change is made for a substantial time after the decision. *In re Pers. Restraint of Reed*, 136 Wn. App. 352, 361, 149 P.3d 415 (2006); *see also State v. Kier*, 164 Wn.2d 798, 805, 194 P.3d 212 (2008) (holding that the legislature had acquiesced in a previous decision on double jeopardy).

Finally, the approach in *Land*, which looks to the defendant's specific conduct (oral/genital contact) to answer the question of whether multiple punishments are authorized, was expressly disavowed by the United States Supreme Court in *United States v. Dixon*, 509 U.S. 688, 704, 113 S. Ct. 2849, 125 L. Ed. 2d 556 (1993), and by our state supreme court in *State v. Gocken*, 127 Wn.2d 95, 896 P.2d 1267 (1995).

In *Dixon*, the Court overruled *Grady v. Corbin*'s[4] adoption of a fact-based, "same conduct" test to determine whether double jeopardy is offended by a subsequent prosecution. 509 U.S. at 704. Under *Grady*, double jeopardy prohibited "a subsequent prosecution if, to establish an essential element of an offense charged in that prosecution, the government will prove conduct that constitutes an offense for which the defendant has already been prosecuted." 495 U.S. at 510. In overruling *Grady*, the *Dixon* court reaffirmed that comparison of the legal elements was the *sole* test and rejected additional analysis of the defendant's specific conduct.

Later, in *Gocken*, our supreme court held that the double-jeopardy clause of the state constitution does not extend broader protection to a criminal defendant than the federal constitution, and thus adopted *Dixon*'s conclusion that only the "same

[4] 495 U.S. 508, 110 S. Ct. 2084, 109 L. Ed. 2d 548 (1990).

elements"[5] test, not an additional "same-conduct" analysis, applies. *Land* mentioned neither *Dixon* nor *Gocken*.

For all of the above reasons, this Court should not follow *Land* and *Sanford* but instead conclude that no "separate and distinct acts" instruction was required as to the child rape count and child molestation count in this case. And as previously discussed, any conceivable risk of double jeopardy was alleviated by the State's clear elections and linear, organized and closing argument that made clear to the jury the conduct underlying the molestation charge from the conduct underlying the rape charges. This Court should reject Hernandez-Escobar's double-jeopardy claim.

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[5] Washington's "same evidence" test mirrors the federal "same elements" test adopted by the Supreme Court. *Louis*, 155 Wn.2d at 569.

4. THE TRIAL COURT WAS NOT OBLIGATED TO CONDUCT "*PETRICH*-BASED POLLING"AFTER THE JURY VERDICTS, A PROCEDURE HERNANDEZ-ESCOBAR APPEARS TO HAVE INVENTED.

Hernandez-Escobar claims that because the State did not elect specific conduct for counts three and four, the trial court was obligated under due-process principles to conduct something Hernandez-Escobar has dubbed "*Petrich*-based polling," requiring the jurors to individually state the factual basis of their verdicts. This claim has no basis in the law; Hernandez-Escobar appears to have invented this procedure. The State properly elected for counts one and two, *Petrich* instructions were given for counts three and four, the jury was properly polled for unanimity, and jurors are presumed to follow the court's instructions. Hernandez-Escobar can show no error.

a. Relevant Facts.

As described above, at the end of trial, the State elected to rely on the first and last rapes of A.D.C.D. as counts one and

two, respectively, and agreed to *Petrich* instructions for the child rape and child molestation charges alleged in counts three and four, respectively. 6/8/23 RP 1673. The State's closing argument reflected the elections and otherwise delineated the distinct acts that made up all four crimes. 6/20/23 RP 1793-1806. The jury instructions made clear that counts one and two required the jury to unanimously find specific acts were proved in order to convict but that counts three and four required the jury to unanimously agree that one particular act was proven and to agree as to which act this was, but that unanimity as to all alleged acts was not required. CP 466-75.

After the jury had rendered its verdict, the trial court asked whether the parties wished the jury polled. Hernandez-Escobar asked that the jury be polled as usual but also be "polled as to the *Petrich*... to determine what conduct each juror indicates constituted the offense." 6/22/23 RP 1895. The jury was polled in the standard manner and then Hernandez-Escobar

stated the basis for his request at sidebar. 6/22/23 RP 1895-97. *See* CrR 6.16(a).

The trial court asked Hernandez-Escobar for legal authority requiring the additional polling he sought. 6/22/23 RP 1897. Hernandez-Escobar admitted he had none, but argued, "I just think that in order to assure that there was unanimity as to verdict, inquiring as to which conduct constituted the offense on the *Petrich* does make sense." 6/22/23 RP 1897.

The trial court then reiterated its concerns that jury deliberations were not something "for a court to pry into," that the *Petrich* instructions laid out what is required for unanimity and "[u]ntil there's some authority you have, I'm reluctant [to pry]." 6/22/23 RP 1897-98. Hernandez-Escobar again responded by saying "I don't have any authority that says with specificity how to address this issue…just ask them specifically as to what conduct did you find constituted the basis for conviction on this offense would be sufficient. And I don't

think it would intrude into the deliberation." 6/22/23 RP 1898. The court again noted that it did not know "of any procedure that commonly follows a *Petrich* instruction to further poll the jury." 6/22/23 RP 1898. The State agreed with the court that the normal polling was sufficient.

The judge gave Hernandez-Escobar yet a third chance to support his request, asking "is there anything that you have to indicate that the jury did not follow those instructions regarding unanimity? Any facts have you to bring forward now?" 6/22/23 RP 1899. Hernandez-Escobar conceded that he had nothing, having "not had the opportunity to speak with [the jury] about their verdict."[6] 6/22/23 RP 1899. The court then denied Hernandez-Escobar's request, again expressing no awareness "even in *Petrich* cases of [there] being any practice

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[6] Hernandez-Escobar made no attempt to gather this information. When the trial court offered to tell the jury of counsel's interest in speaking to them after they were excused, Hernandez-Escobar declined to have the court relay this request. 6/22/23 RP 1900-01.

to require the jury to share with the Court what essentially would be their deliberations." 6/22/23 RP 1900. The court further noted that the law presumes that the jury follows instructions for unanimity "absent any particular facts that there was a defect in their deliberations or some reason to think that they didn't follow the Court's instructions." 6/22/23 RP 1900.

b. Due Process Did Not Require Additional "Petrich-Based Polling."

A defendant has a constitutional right to be convicted by a jury that unanimously agrees that the crimes charged in the information have been committed. *State v. Kitchen*, 110 Wn.2d 403, 409, 756 P.2d 105 (1988). When there is evidence and testimony of multiple acts, any one of which could form the basis of a charged count, either the State must tell the jury which act to rely on in its deliberations, or the court must instruct the jury to agree unanimously on a specific criminal act. *State v. Coleman*, 159 Wn.2d 509, 511, 150 P.3d 1126 (2007).

This "either/or" rule was originally outlined in *Petrich*, 101 Wn.2d at 572. Prior to *Petrich*, the State was required to make an election. *State v. Workman*, 66 Wash. 292, 294-95, 119 P. 751 (1911). *Petrich* recognized that there are situations in which an election by the State is impractical and approved of the court providing an instruction in the alternative. *State v. Brown*, 55 Wn. App. 738, 746, 780 P.2d 880 (1989) (citing *Petrich*, 101 Wn.2d at 572). It is now well settled that the requirement of jury unanimity is satisfied by either the State's election or an instruction by the court. *Kitchen*, 110 Wn.2d at 409; *Coleman*, 159 Wn.2d at 511; *State v. Vander Houwen*, 163 Wn.2d 25, 38, 177 P.3d 93 (2008). Juries are presumed to follow instructions absent evidence to the contrary. *State v. Lamar*, 180 Wn.2d 576, 586, 327 P.3d 46 (2014) (internal citations omitted).

The procedure for polling the jury is described in CrR 6.16(a):

> (3) Poll of Jurors. When a verdict or special finding is returned and before it is recorded, the jury shall be polled at the request of any party or upon the court's own motion. If at the conclusion of the poll, all of the jurors do not concur, the jury may be directed to retire for further deliberations or may be discharged by the court.

Failure to poll the jury upon request of the defendant is reversible error mandating a new trial because "the right to have each juror individually state his or her verdict in his presence is essential to a criminal defendant's constitutional right to a unanimous verdict." *State v. Pockert*, 49 Wn. App. 859, 862, 746 P.2d 839 (1987) (internal citations omitted). "Polling a jury, when properly carried out, is generally evidence of jury unanimity. However, polling may not be effective to establish that a defendant's right to unanimity was secured if the record *affirmatively shows a reason to seriously doubt* that the right has been safeguarded." *Lamar*, 180 Wn.2d at 587-88 (emphasis added) (poll not reflective of unanimity where

alternate juror was seated in the middle of deliberations and told to deliberate only on matters still unresolved).

The scope of polling is narrow, however. The trial judge's inquiry into the verdict is limited to polling members of the jury to ensure that the verdict read is the actual verdict of each individual. *State v. Linton*, 156 Wn.2d 777, 788, 132 P.3d 127 (2006). "Neither parties nor judges may inquire into the internal processes through which the jury reaches its verdict." *Id.* (citing *Breckenridge v. Valley Gen. Hosp.*, 150 Wn.2d 197, 204, 75 P.3d 944 (2003)). The mental processes by which individual jurors reached their respective conclusions inhere in the verdict and "matters that inhere in the verdict are beyond inquiry." *Id.* (quoting *State v. Marks*, 90 Wn. App. 980, 986, 955 P.2d 406 (1998)).

As recounted above, the State followed the either/or rule articulated in *Petrich* by electing separate specific acts for counts one and two, and asking for a *Petrich* instruction on counts three and four. 6/20/23 RP 1793-1806; CP 466-75.

When the jury rendered its verdict, it was polled by the court and the poll confirmed that the verdict was unanimous. 6/22/23 RP 1895-97. That, along with the State's elections and the longstanding presumption that juries follow the courts' instructions, was sufficient for the trial court—and this Court—to be assured of proper unanimity as to separate and distinct criminal acts in its verdicts. Any further inquiry would invade the province of the jury by requiring it to provide private information that inheres in the verdict. *See Linton*, 156 Wn.2d at 788 ("Public policy forbids inquiring into the privacy of the jury's deliberations") (quoting 13 ROYCE A. FERGUSON, JR., WASHINGTON PRACTICE: CRIMINAL PRACTICE AND PROCEDURE § 4617, at 324 (2004)).

When the court twice invited Hernandez-Escobar to provide authority for his request for "*Petrich*-based polling" Hernandez-Escobar twice conceded that he had none. 6/22/23 RP 1897-98. "Where no authorities are cited in support of a proposition, the court is not required to search out authorities,

but may assume that counsel, after diligent search, has found none." *DeHeer v. Seattle Post-Intelligencer*, 60 Wn.2d 122, 126, 372 P.2d 193 (1962). Furthermore, when the court inquired whether Hernandez-Escobar had a factual basis to doubt that the jury followed the court's instructions, Hernandez-Escobar conceded he had nothing. 6/22/23 RP 1899. He fails to show that normal polling of the jury was insufficient. *See Lamar*, 180 Wn.2d at 587-88 (polling insufficient only with affirmative showing of serious doubt of unanimity).

Hernandez-Escobar did not present authority at the time of trial permitting the trial court to engage in a new "*Petrich*-based polling" procedure and he has not presented any grounds for this novel procedure on appeal. He appears to have invented the procedure himself in his quest for a new trial. He fails to explain how this Court is deprived of the ability to make a sufficiency of the evidence determination on appeal because

the jurors did not individually state the basis for the *Petrich* verdicts.

The trial court did not err by declining to engage in a novel procedure, backed by no authority, that would have invaded the jury's private deliberations. This claim is frivolous.

5. THE CHALLENGED COMMUNITY CUSTODY CONDITIONS SHOULD BE AFFIRMED.

Hernandez-Escobar challenges two conditions of community custody. He claims a geographical-restriction condition is unconstitutionally vague. He is incorrect. He claims that a consent-to-searches condition violates his right to privacy under the state constitution. That claim is unripe. This court should reject both claims.

a. Relevant Facts.

Hernandez-Escobar's judgment and sentence had an Appendix H that set forth his conditions of community custody. CP 547. Standard Condition 8 states:

> Remain within geographic boundaries, as set forth in writing by the Department of Corrections Officer or as set forth with SODA order.[7]

CP 547.

Special Condition 8, pertaining to sex offenders, reads:

> Consent to DOC home visits to monitor compliance with supervision. Home visits include access for the purpose of visual inspection of all areas of the residence in which the offender lives or has exclusive access/joint control/access.

CP 547.

b. Standard Condition 8, Pertaining to Geographical Boundaries, Is Valid and Is Not Vague.

Community-custody conditions are reviewed for abuse of discretion. *State v. Hai Minh Nguyen*, 191 Wn.2d 671, 678, 425 P.3d 847 (2018). A condition should be reversed only if it is unconstitutional or otherwise "manifestly unreasonable." *Id.*

[7] Stay Out of Drug Area order.

To comply with due process, a community custody provision must define the criminal offense with sufficient definiteness that ordinary people can understand what conduct is proscribed and provide ascertainable standards of guilt to protect against arbitrary enforcement. *Nguyen*, 191 Wn.2d at 678. But "[a] community custody condition 'is not unconstitutionally vague merely because a person cannot predict with complete certainty the exact point at which his actions would be classified as prohibited conduct.'" *Id.* at 679 (quoting *City of Seattle v. Eze*, 111 Wn.2d 22, 27, 759 P.2d 366 (1988)). Rather, to be valid, a condition must put a person of ordinary intelligence on notice of the behavior the condition prohibits. *Id.* Some possible areas of disagreement are permissible. *Id.* Our supreme court has reiterated that conditions are to be considered in "a commonsense fashion" in a context including "the judgment and sentence, and related documents that will be available to [a] future community

corrections officer." *State v. Johnson*, 197 Wn.2d 740, 748, 487 P.3d 893 (2021).

In *Johnson*, the supreme court took an uncynical approach to community custody conditions and expressed trust in the Department of Corrections to enforce them appropriately:

> Similarly, in this case, we find that any danger of arbitrary enforcement is constrained by other documents related to Johnson's convictions. Most specifically, the crimes themselves and the statement of probable cause provide sufficient direction to prevent arbitrary enforcement. The statement of probable cause contains a detailed recitation of the facts that led up to Johnson's arrest, including the role Johnson's Internet use played. When read in conjunction with this condition of community custody, these documents provide meaningful benchmarks to restrict arbitrary enforcement.

197 Wn.2d at 749.

Under well-established law and our supreme court's approach to community custody conditions, Hernandez-Escobar's geographical-restriction condition is not unconstitutionally vague. This prohibition is identical to the guidelines set forth in RCW 9.94A.704, which establish the

rules for community custody. The statute provides: "If the offender is supervised by the [D]epartment [of Corrections], the [D]epartment shall at a minimum instruct the offender to [r]emain within prescribed geographical boundaries." RCW 9.94A.704(3)(b). Because this condition mirrors statutory language, it must be presumed to be constitutional. Statutes are presumed constitutional. *State v. Batson*, 196 Wn.2d 670, 674, 478 P.3d 75 (2020).

But even without the presumption of constitutionality, this condition survives scrutiny. First, this condition informs an ordinary person that he or she will be subject to geographic limitations while under community custody. The challenged condition does not contain a vague or undefined term that would leave an ordinary person confused about what conduct is prohibited. In addition, conditions set by the Community Corrections Officer (CCO) must be provided to the offender in writing and the offender has an opportunity for administrative review to challenge the lawfulness of the condition. RCW

9.94A.704(7)(a)-(b). This process prevents arbitrary enforcement of the community custody condition. And just as in *Johnson*, this Court should have faith that a community corrections officer will rely on relevant documents to find "meaningful benchmarks to restrict arbitrary enforcement." 197 Wn.2d at 749.

In support of his argument, Hernandez-Escobar cites two unpublished opinions finding the same condition to be unconstitutionally vague.[8] However, neither of those opinions are binding and multiple other panels from this court have determined this condition to not be vague. *See*, *e.g.*, *In re Pers. Restraint of Delacruz*, 20 Wn. App. 2d 1007, 2021 WL 5323921 (2021) (unpublished)[9]; *State v. Blake*, 2019 WL276047, 7 Wn. App. 2d 1025 (2019) (unpublished), *rev'd on other grounds*, 197

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[8] *In re Pers. Restraint of Alaniz*, 30 Wn. App. 2d 1024, 2024 WL 1209297 (2024) (unpublished); *In re Pers. Restraint of Bratcher*, 30 Wn. App. 2d 1036, 2024 WL 1406540 (2024) (unpublished).

[9] Per GR 14.1 unpublished opinions are accorded persuasive value as the court deems appropriate.

Wn.2d 170, 481 P.3d 521 (2021); *In re Pers. Restraint of Rowe*, 14 Wn. App. 2d 1012, 2020 WL 4596076 (2020) (unpublished); *State v. Landrum*, 199 Wn. App. 1037, 2017 WL 2645718 (2017) (unpublished).[4] Likewise, in *State v. Ortega*, 21 Wn. App. 2d 488, 506 P.3d 1287 (2022), this court, in a published opinion, rejected a claim that delegation of a community custody condition to the Department of Corrections (DOC) rendered the condition vague. Such a delegation does "not grant [the defendant's] CCO unbridled discretion to proscribe conduct because the Department's authority is defined by statute." *Id.* at 496.

Notably, the opinions cited by Hernandez-Escobar fail to acknowledge that the condition merely mirrors the statutory authority of the DOC to set boundaries, that a CCO must provide a list the prohibited areas to the defendant in writing prior to imposition, and that the prohibitions are subject to administrative review. A condition to not go to certain locations is not confusing where the locations prohibited are given in

writing. The fact that the prohibited locations are written down prevents arbitrary enforcement because the question will simply be whether the offender was in a location that was on the list of prohibited locations. So too does administrative review protect against arbitrary enforcement. Cases that have addressed these facts have rejected vagueness challenges to this identical community custody condition. *See Delacruz*, at *2 ("once the CCO imposes geographic restrictions the prohibited conduct is easily understood by an ordinary person and the CCO has imposed explicit restrictions to prevent arbitrary enforcement."); *Blake*, at *3 ("The challenged condition does not contain a vague or undefined term that would leave an ordinary person confused about what conduct is prohibited. In addition, conditions set by the CCO must be provided to the offender in writing and the offender has an opportunity for administrative review to challenge the lawfulness of the condition. RCW 9.94A.704(7)(a)-(b). This process prevents arbitrary enforcement of the community custody condition.");

Landrum, at * 9 ("The fact that approvals and parameters will be decided in the future does not make these conditions vague or ambiguous. The subject matters and sources of approval are clear.").

The *Alaniz* and *Bratcher* opinions cited by Hernandez-Escobar are further unsupported by any explanation as to what words or terms in the geographic boundary condition would not be understandable to an ordinary person. Neither Hernandez-Escobar's opening brief, nor these opinions, identify what words or phrases in the geographic-boundaries condition are unconstitutionally vague. This omission directly conflicts with binding supreme court vagueness cases that mandate this step. *See*, *e.g.*, *In re Pers. Restraint of Ansell*, 1 Wn.3d 882, 896-97, 533 P.3d 875 (2023) (rejecting vagueness challenge to condition of community custody after consulting a standard dictionary); *Nguyen*, 191 Wn.2d at 680-82 (same); *State v. Murray*, 190 Wn.2d 727, 737-38, 416 P.3d 1225 (2018) (rejecting vagueness challenge to aggravating circumstance after consulting a

standard dictionary); *State v. Kintz*, 169 Wn.2d 537, 547-48, 238 P.3d 470 (2010) (rejecting vagueness challenge to statute defining a crime based on dictionary definitions of words). As Hernandez-Escobar's vagueness challenge cannot survive this step of the analysis, this court should reject his claim and agree with the unpublished-but-persuasive opinions in *Delacruz*, *Blake*, *Rowe*, and *Landrum* in affirming this condition.

c. Hernandez-Escobar's Challenge to the Condition Requiring Consent to DOC Searches Should Be Rejected as Not Ripe for Review.

A community-custody condition is reviewed for abuse of discretion and should be reversed only if it is unconstitutional or otherwise "manifestly unreasonable." *Nguyen*, 191 Wn.2d at 678. Probationers have a reduced expectation of privacy and are therefore "not entitled to the full protection of article I, section 7." *State v. Cornwell*, 190 Wn.2d 296, 301-02, 412 P.3d 1265 (2018). Such persons are not, however, completely unprotected—a community custody officer must still have a

"well-founded or reasonable suspicion of a probation violation" to justify a search. *Id.*; RCW 9.94A.631(1).

But not all community-custody conditions can be challenged on direct appeal prior to enforcement. *State v. Cates*, 183 Wn.2d 531, 534, 354 P.3d 832 (2015). *Cates* discussed a three-part test to determine "whether a pre-enforcement challenge . . . is ripe for review on its merits." *Id.* The appellate court considers: (1) whether the issues raised are "primarily legal" and "do not require further factual development," (2) whether the challenged action is "final," and (3) whether declining review on direct appeal would work a hardship upon the defendant. *Id.*

Cates addressed an almost identical constitutional challenge to an identical condition. The supreme court declined to consider Cates' argument on direct appeal because "[t]he condition as written does not authorize any searches," "the State's authority is limited to that needed to monitor [Cates'] compliance with supervision," and because compliance "does

not require Cates to do, or refrain from doing, anything upon his release until the State requests and conducts a home visit." *Id.* Because the constitutionality of the provision depended on the "particular circumstances of the attempted enforcement," Cates could not preemptively challenge it. *Id.* *Cates* is dispositive of Hernandez-Escobar's claim.

This Court has correctly recognized *Cates* as binding authority on this issue and declined to review pre-enforcement challenges to this type of community-custody condition. *State v. Peters*, 10 Wn. App. 2d 574, 595, 455 P.3d 141 (2019). *See also State v. Crew*, No. 83753-2-I (unpublished, July 24, 2023), 2023 WL 4703889 at *2-3 (offered for persuasive authority only). If the State later seeks to search Hernandez-Escobar's home, and if he believes an adequate basis does not exist, "he can refuse and test the enforcement of the condition." *Peters*, 10 Wn. App. 2d at 595. Until then, this Court must adhere to *Cates* and conclude that Hernandez-Escobar's challenge is not ripe for review.

D. CONCLUSION

For all the foregoing reasons, the State respectfully asks this Court to affirm Hernandez-Escobar's judgment and sentence.

This document contains 11,439 words, excluding the parts of the document exempted from the word count by RAP 18.17.

DATED this 23rd day of December, 2024.

Respectfully submitted,

LEESA MANION (she/her)
King County Prosecuting Attorney



By:
RAZ BARNEA, WSBA #52719
Deputy Prosecuting Attorney
Attorneys for Respondent
Office WSBA #91002

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